



OHIO RIVER TRAIL FEASIBILITY STUDY

June 17, 2010

Ohio River Trail Proposed Route – Ownership and Partnership Strategies

Partnerships: An Effective Way of Planning, Developing, Managing, & Maintaining the Ohio River Trail

The Ohio River Trail will be a great asset and wonderful addition to the region. It offers important recreational, health, tourism, and economic benefits to local and regional residents. The trail will help to stimulate the development of new businesses as well as tourism-related opportunities like river rafting or canoe tours, bicycle sales and rentals, restaurants and lodging. It will become a highly desirable recreation destination, which will help to attract and retain businesses, residents (including young families) to the region.

Trail Host Communities

The entire Ohio River Trail will traverse twenty-six (26) western Pennsylvania Communities. While this project focuses on the south shore communities, it is important to consider the ultimate trail, as a whole, when considering management, operations and partnerships strategies. By establishing an effective and creative approach to management rooted in collaboration, additional partners and resources can be folded in as the trail is extended. The eight South Shore communities include the Boroughs of Monaca, South Heights, and Coraopolis, the City of Aliquippa, and the Townships of Center, Hopewell, Crescent, and Moon. The eleven North Shore communities include the boroughs of Glasgow, Ohioville, Midland, Industry, Beaver, Bridgewater, Fallston, New Brighton, Rochester, and the Townships of Vanport and Rochester. In addition, the North Shore Extension Communities include the Boroughs of Ambridge, Leetsdale, Edgeworth and Sewickley. The Bradys Run Extension adds Patterson and Brighton Townships.

The eight communities within the trail segment of this project lie in two counties, Beaver and Allegheny, and have a combined population of over 75,000 and ranging in population size from 542 to 22,290 residents. The level of municipal staffing, budget and capacity for maintenance and operations vary widely by jurisdiction. By working together in developing, operating and maintaining the Ohio River Trail, the municipalities will be able to develop and operate the trail as a premiere recreation facility that will be an important asset of the region.

Value of Intergovernmental Collaboration

Intergovernmental collaboration in planning, developing, and maintaining the Ohio River Trail has a sound basis in the following six areas:

- **Interdependence** – The Ohio River Trail encompasses eight municipalities in two counties and is without jurisdictional borders. By working together, the municipal collaborative can assure that the trail will appear seamless and unified its entire length. Decisions made by one municipality along the trail will affect other municipalities and the segment of the trail in their respective community.
- **Effectiveness** - Public services can be more effective when municipalities work together. This is especially true when facilities, such as the Ohio River Trail, cross boundaries and when special skills or services may be needed for a facility.
- **Economy of Scale** – Working together is a smart way of conducting the public’s business in terms of efficient and effective practices that result in cost savings, more “bang for the buck”, and reduction in duplication of services, equipment and spending.
- **Improved chance for grant funding** – The trend is for funding agencies, including the Commonwealth of Pennsylvania, to award grants for projects with a regional, multi-municipal, and public private partnership foundations in place.
- **Higher quality of facilities and services** – By joining forces, the municipalities can maintain, advertise, program and respond to citizen needs regarding the trail in a higher quality manner than they could independently.
- **Better, more convenient public service** – Having a unified trail organization in place enables “one stop shopping” for citizens. The single organization offers a single point of contact that is easily identifiable by the public as the “go to” place for information about the trail, resolution of problems and reporting of issues.

Ohio River Trail Council: Umbrella Organization

The Ohio River Trail Council (ORTC) is a non-profit volunteer-led corporation that works to bring individuals, communities, businesses, recreational users and all levels of government together to promote and protect a continuous corridor of natural and cultural resources along the Ohio River and its tributaries. The ORTC's goal is to honor the region’s past and build the future by providing recreation opportunities, heritage development, environmental stewardship, safe transportation networks and economic stimulus to the community. The ORTC is an organization committed to excellence, with a clear vision and a passion for delivering outstanding results. The ORTC mission includes the construction of land and water trails through the reallocation of abandoned rail corridors, bridges, trolley lines, brownfields, and canal towpaths. The ORTC encourages additional access to these resources and ensures that these natural areas are afforded protection. The ORTC endorses the revitalization of the natural beauty of the Ohio River and its surroundings, one of Western Pennsylvania’s most important natural resources. The ORTC goal is to conserve one of the most diverse ecological ecosystems in Pennsylvania.

The ORTC focuses its efforts on showcasing, recreational, educational, historical and cultural sites along the trail. The ORTC is committed to saving and exhibiting collections of historical significance of the region. This preservation provides an enduring record of the past, celebrating our heritage and providing an experience to discover our history with the establishment of the Ohio River Trail Museum.

ORTC as Vehicle for Multi-Municipal Collaboration

The ORTC could serve as the vehicle for a multi-municipal agreement for the Ohio River Trail. Already in place with a positive public image, the ORTC could help to carry out the inter-municipal agreement for the trail development and operation. The ORTC actually already provides a foundation to the municipalities in the trail corridor in terms of getting up and running with trail management.

The ORTC could serve in a leadership role in all facets of trail planning, development and operation in the corridor, thereby providing expertise and support that the municipalities have on their own. To that end, the following guiding principles could be established to provide a common and clear foundation for the multi-municipal partnership:

Guiding Principles

- **Productive Partnerships** – Partners in the inter-municipal agreement would include Beaver and Allegheny Counties, the nine South Shore communities including the boroughs of Monaca, South Heights, Coraopolis and Montour Junction/Groveton, the City of Aliquippa, and the townships of Center, Hopewell, Crescent, and Moon. ORTC would serve as the umbrella organization. Other partners would include CJ Betters Corporation, American Bridge Corporation and the U.S. Army Corps of Engineers. The other 17 municipalities could join the agreement over time as the trail is developed.
- **Excellent Service** – Provide the best possible service in the planning and development of the Ohio River Trail that foster high quality experiences for the people who use it.
- **Trail Planning Leadership** – Set the standard for trail planning and development in the trail corridor.
- **Capacity Building** – Work with the municipalities and other organizations interested in the trail and other trail segments connecting to the Ohio River Trail for the purpose of advancing the trail network in the region.
- **Wise Decisions** – Base decisions on a solid foundation of information that includes public opinion, environmental, engineering, safety, aesthetics, heritage, transportation and recreation considerations.
- **Effective and Efficient Management** – Develop and implement sound management practices that are action oriented, have accountability, and foster creative and collaborative solutions.
- **Stable Funding** – Strive to provide a stable funding base to support the ORT mission. The projected annual cost for maintaining the ORT covered by this plan is projected to cost about \$25,000 equating to about \$1,500 per mile. On-road lengths will require less maintenance and

therefore cost less than off-road segments. Maintenance costs by trail segment will be provided as part of this plan so that each municipality will have the projection for their respective jurisdiction. Other costs for advertising, volunteer management, programs and events would fall to the ORTC.

Legislation Authorizing Intergovernmental Cooperation

The Commonwealth of Pennsylvania law authorizing intergovernmental cooperation, now codified in Title 53 of the Pennsylvania Consolidated Statutes, Sections 2301-2315, was originally adopted as Act 180 of 1972. Title 53 authorizes two or more “local governments” to “jointly cooperate in the exercise or in the performance of their respective governmental functions, powers or responsibilities.” Such cooperation is to be authorized by ordinance, which must specify the conditions, duration, purpose, manner, and extent of any financing, organizational structure, manner in which property will be acquired, managed, and disposed of, and that the entity created will be empowered to enter into certain employee related contracts.

Appendix A presents a sample agreement for an intergovernmental agreement for the ORT South Shore communities. This is presented as an example and as the basis for discussion in advancing the intergovernmental agreement for the trail. The process for negotiating this agreement should be determined. This could be done with appropriate existing parties involved with this project such as the ORTC. If no suitable party is in place to undertake this negotiation, the municipalities could consider applying for a Peer Study funded by PADCNr. The Peer Study would be a grant funded project with PADCNr contributing \$10,000 and the partnering communities or another source such as the counties or the ORTC paying a total cost of only \$1,000 as the match. A solicitor must review the agreement with each municipality having their own solicitor review the agreement at appropriate points in development.

Appendix A - Sample Intergovernmental Agreement for ORT/ Agreement of Cooperation

This agreement made this ____ day of _____, 2010 by and among:

Monca Borough, situated in County
AND

Center Township, situated in County
AND

City of Aliquippa, situated in County
AND

Hopewell Township, situated in County
AND

South Heights Borough, situated in County
AND

Crescent Township, situated in County
AND

Moon Township, situated in County
AND

Coraopolis Borough, situated in County

Hereafter collectively referred to as the “Partnership” or sometimes individually as “Participant”.

Witnesseth

WHEREAS, the Partnership, desires to improve and maintain said real property of the Ohio River Trail for the purpose of providing recreational trails for biking, hiking, equestrian and other non-motorized activities.

WHEREAS, the Intergovernmental Cooperation Act (53 PA. C.S. Sections 2301 and 2302, herein called the “Act”) permits municipalities to enter into agreements to cooperate in the exercise or performance of their respective functions, powers or responsibilities, including recreation and park activities; and

WHEREAS, it is believed by the Participants that the citizens within their respective political boundaries will be benefited by the Ohio River Trail jointly maintained by them, which program shall comply with all applicable laws; and

WHEREAS, it is the desire of the parties to arrange for proper operation and maintenance of the Ohio River Trail, and

WHEREAS, the purpose of the Agreement is to provide a framework and a mechanism to adequately maintain the trail within the political boundaries of the Participants through joint efforts rather than by separate efforts of each Participant; and

WHEREAS, to prevent duplication of effort and to maximize cost effectiveness, the Participants mutually desire to mobilize community resources to effectively and economically maintain the Ohio River Trail; and

WHEREAS, the Participants intend to foster partnerships with other public and private organizations to collaborate with the Partnership for the good of all of the communities participating and enable other municipalities to become members of the partnership in the future, and

WHEREAS, all municipalities are legally authorized to enter into such an agreement for the joint administration of recreational facilities including trails for their respective citizens.

NOW THEREFORE, in consideration of the mutual promises contained herein, the Participants agree as follows:

1. Incorporation of Recitals

The above recitals are hereby incorporated herein as if fully set forth.

2. Responsibilities

- (a) (Name of Organization – could be the ORTC?) shall manage and administer the operation and management of the Ohio River Trail pursuant to this agreement, and all amendments hereto.
- (1) **Ownership** – _____ retains ownership of the (needs to be fully described)
- (2) **Grants** – (Name of Organization) will pursue grant funding for the cyclic costs, such as resurfacing of the trail so that Participants will not be responsible for the capital re-surfacing and equipment replacement expenses.
- (3) **Coordination** – (Name of Organization) shall be responsible for coordinating all trail functions including special events with the Participants.
- (4) **Communication** – (Name of Organization) shall be responsible for taking the lead on communication to insure that all parties are fully informed and involved with all aspects of the Ohio River Trail. This shall include an annual meeting of the Partnership to set goals for the next fiscal year and to resolve any issues related to trail operations.
- (5) **Planning** – (Name of Organization) shall be responsible for all planning related to the operation and management of the trail. (Name of Organization) shall involve the Participants in the planning process.
- (6) **Directing** – (Name of Organization) shall be responsible for directing the operations of the trail through coordination with the Participants. This includes:
 - (a) Development and establishment of planned maintenance management system for the Ohio River Trail.
 - (b) Scheduling and implementation of seasonal trail clean up programs.
 - (c) Inspecting the trail at regular intervals and coordinating any maintenance needs with the respective Participant.
 - (d) Contracting for high tree pruning and herbicide spraying.
 - (e) Replacement of equipment.
 - (f) Contracting for any repair that is capital in size and scope of work. (Add \$ amount)
 - (g) Serving as the single point of contact for the trail and responding to all citizen concerns and requests for information.
 - (h) Publicizing the trail.

- (i) Coordinating the development of volunteer training.
 - (j) Developing and implementing a trail volunteer program.
 - (k) Responding to requests for assistance from the Participants regarding trail operations.
 - (l) Fundraising for the trail.
- (7) **Evaluating** - (Name of Organization) shall be responsible for annually evaluating trail operations in collaboration with the Participants and making recommendations on operational improvements.
- (b) Participants.
- (1) **Ordinance** -Each Participant must adopt an ordinance, or other action of its governing body of equal status, ratifying their participation in the program and approving and authorizing the execution of the Agreement.
 - (2) **Official Recognition**- Each Participant will incorporate the Ohio River Trail in its official municipal maps and plans.
 - (3) **Communication** – Each participant shall inform the (Name of Organization) about the trail with respect to conditions or incidents that require (Name of Organization’s) response. Each participant shall designate an official contact for the Ohio River Trail for communication with (Name of Organization).
 - (4) **Trail Segment** - Each participant shall administer the maintenance of the Ohio River Trail within the segment of the corridor located within the respective municipality according to agreed upon Maintenance Standards, attached hereto. The trail will have a “pack it in/pack it out” regulation for trash.
 - **Trail Surface**- (Name of Organization) will be responsible for soliciting and entering into contracts for trail resurfacing.
 - **Trail Heads** – Each Participant shall be responsible for the maintenance of the trailhead(s) within its jurisdiction according to the Maintenance Standards. (Trailhead is defined as a major point of entry to the trail that provides parking, information boards, and other trail amenities.)
 - **Tree Trimming** – Each Participant shall be responsible for trimming trees along its segment of the corridor twice annually to the height specified in the Maintenance Standards
 - **Trail Mowing** – Each Participant shall be responsible for trail mowing twice-monthly April through October.
 - **Security** – Each Participant shall be responsible for the patrolling of the trail on a schedule to be determined by the Participant.
3. The Partnership will establish its own form of organization and appropriate by-laws. Said by-laws shall incorporate any and all provisions set forth in this Agreement with regard to the conduct of business and shall be reviewed and commented upon by the governing bodies of the Participants.
- (a) Duties of the Members
- (1) Each member shall serve as a liaison with his or her respective local government, keeping them informed of the Ohio River Trail and to obtain the input of local officials.
 - (2) Identify and report the trail needs of their respective municipality to the (Name of Organization), as well as monitoring the progress of (Name of Organization) in addressing those needs.
4. Finances
- (a) (Name of Organization) shall be responsible for all capital improvements through the pursuit of grants; raising funds for contracting the tasks of high tree maintenance and herbicide spraying; staff for coordination, oversight and management.

- (b) Participants shall be responsible for providing the above identified maintenance tasks in Item 2(b) as their in-kind service for the operation of the Ohio River Trail.
- (c) Insurance – (Name of Organization) in conjunction with the Counties of Beaver and Allegheny shall provide liability insurance for the Ohio River Trail .

5. Effective Date, Term, Termination, Adding Participants

- (a) Effective Date and Term – This agreement shall be effective _____, 2010 and shall be for a term of _____ years ending _____. Participants may not withdraw from this agreement during the initial _____ agreement. The Agreement shall continue in full force and effect and shall automatically be renewed year-to-year thereafter except as otherwise provided in this agreement.
- (b) Withdrawal – After the initial _____ term, a Participant may withdraw from the terms of this agreement at the end of any calendar year by giving written notice to the (Name of Organization) one (1) year before the proposed withdrawal date. Withdrawal from this agreement by any Participant shall not terminate the agreement among the remaining parties. Withdrawal from this agreement must be approved by the majority of the voting members of the governing body of the Participant, which desires to withdraw, and voted on in a public meeting held in accordance with the Pennsylvania Sunshine Act.
- (c) Dissolution – In the case of dissolution of the Partnership by mutual consent of all Participants hereto, the equipment, property, materials, supplies and capital assets of the Partnership shall remain in place and become the responsibility of a successor trail manager or the landowner,.
- (d) Adding Participant(s) – At any time during the term of this Agreement consideration may be given to invite or at their own choosing allow other municipal entities to join and become part of this Agreement. The new Participant must pass an ordinance, or other action of its governing body of equal status, which includes approval of this Agreement and its amendments and authorizes the additional execution of this Agreement by the new participant. Terms of such addition shall be approved by a majority of Participants at such time.

6. Entire Agreement

This Agreement constitutes the entire contract by the Participants and there are no other understandings, oral or written, relating to the subject matter hereof.

7. Amendment

This Agreement shall not be amended or altered except by writing duly approved by and signed on behalf of all of the Participants.

8. Governing Law

This Agreement shall be governed by the Laws of the Commonwealth of Pennsylvania. This Agreement is adopted pursuant to the Act and each Participant shall take all necessary steps under said statute to copy with the same.

9. Further Action

The Participants agree to take all action necessary to carry forth the provisions of this Agreement.